

		responded on June 11 to advise that he did not intend to serve supplemental responses pursuant to Plaintiff's unilateral deadline. (Exhibit 9 at p. 1.) The Court finds that, outside of Nos. 12, 15, and 16, Plaintiff did not adequately meet and confer regarding the dispute requests. Raising any issues with regard to the responses only two days before Plaintiff's unilateral deadline for supplemental responses does not constitute a good faith attempt to reach an informal resolution. Plaintiff argues that any further meet and confer would have been futile and Defendant's refusal to meaningfully engage in the meet and confer process is well documented. But there is no evidence that Defendant refused to meaningfully engage in the meet and confer process. Rather, Defendant simply refused to comply with Plaintiff's two-day deadline to serve supplemental responses, a deadline that was unreasonable in light of the numerous issues raised in Plaintiff's meet and confer correspondence. Because Plaintiff did not adequately meet and confer with regard to Nos. 1-11, 13-14, and 17-25, the Motion as to those requests is DENIED. As to Nos. 12, 15, and 16, Defendant's response that it is not in possession, custody, or control of any responsive documents is not accompanied by the required affirmation that "a diligent search and a reasonable inquiry has been made in an effort to comply with [these] demand[s]." (Code Civ. Proc., § 2031.230.) Thus, further responses are warranted. The Motion as to Nos. 12, 15, and 16 is therefore GRANTED. Further responses to be <u>served within 15 days</u>. Given that the Motion is in large part denied, Plaintiff's request for monetary sanctions is also DENIED. Moving party to give notice.
12.	30-2023-01329362 Re/Pro Realty vs. Avarca	1. Motion to Compel Deposition (Oral or Written) Plaintiff Re/Pro Realty's motion to compel the deposition of third-party Claudia Romo is DENIED. On August 6, 2026, this Court continued the initial hearing on this matter to allow Plaintiff time to file a proof of service of the moving papers, as well as to allow opposition and reply briefing. The Clerk served the Court's Minute Order continuing the hearing on Plaintiff and Plaintiff was ordered to serve notice of the continued hearing on all other parties. (ROA 189.) Plaintiff has not filed a proof of service demonstrating that notice of the continued hearing date was given as required. Thus, in addition to Plaintiff's failure to comply with this Court's order, the proposed deponent (nonparty Claudia Romo) does not appear to have been notified of the continued hearing date for this motion and no responsive pleading was filed. Further, while Plaintiff filed a proof of service indicating that the proposed deponent was personally served with the moving papers, there is no indication that any of the parties to the case were served with the underlying papers, as required by the Code of Civil Procedure. Clerk to give notice.